

FUNDAMENTAL RIGHTS

PART III • ARTICLES 12-35 • COMPLETE CORE -> REMEDY -> CONTROL RAIL

Answer line: identify holder and respondent, apply exact text and named doctrine, then state remedy and qualification.

STAGE 01

PART III ARCHITECTURE AND REACH

CORE

PART III, ARTICLES 12-35

GATEWAY -> Article 12 defines State; Article 13

controls inconsistent law

RIGHTS -> 14-18 equality | 19-22 freedom | 23-24

exploitation

25-28 religion | 29-30 culture/education |

32 remedies

CONTROLS -> 31A-31C savings | 33-35 special powers

BENEFICIARY != RESPONDENT

citizens: 15, 16, 19, 29

persons: 14, 20, 21, 22, 23, 24, 25

Article 30 text: all minorities

direct private reach: 15(2), 17, 23, 24

legislation-mediated private reach: 15(5)

ANSWER ORDER: holder -> respondent -> right -> exact

limit -> test -> remedy -> caveat.

STAGE 02

ARTICLE 12 STATE AND ARTICLE 226 PUBLIC-DUTY BOUNDARY

CORE

STAGE 02

ARTICLE 12 STATE AND ARTICLE 226 PUBLIC-DUTY BOUNDARY

CORE

ARTICLE 12 EXPRESS BODIES

Union Government/Parliament | State Government/Legislature | local authorities

OTHER AUTHORITY / INSTRUMENTALITY

R.D. Shetty (1979) -> functional indicators

Ajay Hasia (1981) -> form is not decisive

Pradeep Kumar Biswas (2002) -> financial + functional + administrative
domination of a pervasive character

INDICATORS: ownership/finance | control | public importance | monopoly
transferred department | cumulative real relationship

SEPARATE QUESTION:

not State under Article 12

-> may still perform a public duty

-> Article 226 can reach the public-law element.

STAGE 03

ARTICLE 13, INVALIDITY DOCTRINES AND AMENDMENT ROUTE

CORE

ARTICLE 13

13(1) pre-Constitution law -> void to extent of
inconsistency

13(2) State shall not make abridging law -> void to
extent

13(3) ordinance/order/bye-
law/rule/regulation/notification/custom/usage

13(4) constitutional amendment follows Article 368

DOCTRINES

severability -> workable valid residue + legislative
intent

eclipse -> classic pre-Constitution law lies dormant;

may revive

waiver -> Bhasheshwar Nath (1959): holder cannot

validate unconstitutional power

prospective overruling -> Golaknath (1967) calibrated
temporal effect

AMENDMENT CONTROL

Shankari Prasad (1951) -> amendment not ordinary

Article 13 law

24th Amendment -> express Article 368 power + Article
13(4)

Kesavananda Bharati (1973) -> every Part amendable,
basic structure not destructible.

DOCTRINES

severability -> workable valid residue + legislative intent
eclipse -> classic pre-Constitution law lies dormant;

2nd Amendment -> express Article 600 power + Article 13(4)

Kesavananda Bharati (1973) -> every Part amendable, basic structure not destructible.

STAGE 04

MANDATORY DOCTRINE TIMELINE

CORE

1950 A.K. GOPALAN -> narrow procedure; siloed rights
1951 CHAMPAKAM -> communal admission allocation invalid; First Amendment / 15(4)
1951 SHANKARI PRASAD -> amendment not ordinary law under Article 13
1967 GOLAKNATH -> prospective restriction on FR-amending power
1970 R.C. COOPER -> effect of State action; silos weaken
1973 KESAVANANDA -> amendment subject to basic structure
1978 MANEKA GANDHI -> fair, just, reasonable procedure; 14-19-21 link
1980 MINERVA MILLS -> limited amending power; Part III-IV harmony
1981 WAMAN RAO -> 24 April 1973 Ninth Schedule boundary
2007 I.R. COELHO -> later Ninth Schedule entries face basic-structure review
2017 SHAYARA BANO -> 3:2 talaq-e-biddat invalid; Nariman-Lalit opinion uses manifest arbitrariness
2017 PUTTASWAMY -> nine judges; privacy intrinsic to Article 21 and Part III
2018 NAVTEJ -> consensual adult same-sex intimacy decriminalised
2018 JOSEPH SHINE -> adultery offence invalidated
2020 ANURADHA BHASIN -> internet as medium; publication, review, proportionality.

STAGE 05

ARTICLE 14 EQUALITY CODE

CORE

TWIN EXPRESSIONS

equality before law -> negative / no privilege
equal protection -> positive / like treatment in like circumstances

CLASSIFICATION

intelligible differentia
+ rational nexus to statutory objective
= permissible classification, not class legislation

ANTI-ARBITRARINESS

1973 Kesavananda Bharati -> manifest arbitrariness

intelligible differentia

+ rational nexus to statutory objective

= permissible classification, not class legislation

ANTI-ARBITRARINESS

E.P. Royappa (1974) -> equality opposes arbitrariness

Maneka Gandhi (1978) -> non-arbitrary fair State action

Shayara Bano (2017) -> manifest arbitrariness used in Nariman-Lalit opinion

SUBSTANTIVE EQUALITY

identical treatment can preserve disadvantage;

clause-specific support may be constitutionally authorised.

STAGE 06

ARTICLES 15-16 AND RESERVATION CHRONOLOGY

CORE

ARTICLE 15

(1) religion/race/caste/sex/place of birth

(2) specified access prohibition -> direct private reach

(3) women/children | (4) SEBC/SC/ST

(5) admissions incl private aided/unaided; excludes

Article 30(1)

(6) EWS incl up to 10%

ARTICLE 16

(1)-(2) public-employment equality

(3) residence by Parliamentary law

(4) backward class + inadequate representation

(4A) SC/ST promotion | (4B) backlog | (5) religious

office | (6) EWS

TIMELINE

Champakam 1951 -> First Amendment / 15(4)

Indra Sawhney 1992 -> creamy layer; ordinary 50% ceiling; no 16(4) promotion

77th/81st/82nd/85th ->

promotion/backlog/standards/seniority

Nagaraj 2006 / Jarnail 2018 -> data, inadequacy, efficiency

103rd + Janhit 2022 (3:2) -> EWS upheld

Davinder Singh 2024 -> evidence-based SC sub-classification permitted.

STAGE 07

ARTICLES 17-18: CONSTITUTIONAL ANTI-HIERARCHY

CORE

ARTICLE 17

untouchability abolished; practice in any form forbidden

disability enforcement punishable by law

ARTICLE 17

untouchability abolished; practice in any form forbidden
disability enforcement punishable by law
direct horizontal reach
Protection of Civil Rights Act 1955
SC/ST (Prevention of Atrocities) Act 1989
LIMIT: historical caste meaning, not every social avoidance

ARTICLE 18

State shall not confer titles except military/academic distinctions
citizen cannot accept title from foreign State
office-holder controls on foreign title/present/emolument
Balaji Raghavan (1996): Bharat Ratna/Padma are not prohibited titles
but cannot be used as prefixes/suffixes

TRAP: Article 17 belongs to equality, not exploitation.

STAGE 08

ARTICLE 19 FREEDOMS AND EXACT RESTRICTION GROUNDS

CORE

ARTICLE 19(1): CITIZENS ONLY

(a) speech/expression -> 19(2):
sovereignty/integrity; State security;
friendly relations; public order;
decency/morality; contempt;
defamation; incitement
(b) peaceful unarmed assembly -> 19(3):
sovereignty/integrity; public order
(c) association -> 19(4): sovereignty/integrity;
public order; morality
(d) movement + (e) residence -> 19(5): general

public; ST protection
(g) profession/trade/business -> 19(6): general
public; qualifications;
State monopoly

DISTINCTIONS

press freedom derives from 19(1)(a)
no Fundamental Right to strike
foreign travel -> Article 21, not 19(1)(d)
listed grounds are closed and not interchangeable.

STAGE 09

SPEECH, PRESS, DIGITAL MEDIUM AND CURRENT CRIMINAL-LAW BOUNDARY

CORE

1950 Romesh Thappar / Brij Bhushan -> circulation and prior restraint
1951 First Amendment -> reasonable + public order + friendly relations + incitement
1962 Kedar Nath Singh -> old 124A upheld through incitement/public-disorder reading
1963 Sixteenth Amendment -> sovereignty and integrity
2015 Shreya Singhal -> 66A void; 69A retained with safeguards; 79 read down
2020 Anuradha Bhasin -> speech/trade through internet; orders published,
reviewed and proportionate; no indefinite suspension
2024 Electoral Bonds -> political-funding information under 19(1)(a);
unlimited corporate-contribution change arbitrary
1 JUL 2024 BNS 152 operative -> distinct secession/rebellion/subversion text
28 AUG 2025 vires notice -> no located final merits decision by 7 SEP 2026
TRAP: internet is a medium of protected freedoms, not an unlimited standalone holding.

STAGE 10

ARTICLE 20 CRIMINAL SAFEGUARDS

CORE

ARTICLE 20: ALL PERSONS

20(1) no retrospective offence or enhanced penalty
beneficial retrospectivity may operate
20(2) no prosecution AND punishment twice for same offence
not every departmental/civil consequence
20(3) accused + compulsion + testimonial communication against self

EVIDENCE BOUNDARY

Kathi Kalu Oghad (1961) -> fingerprints/handwriting/physical material distinct
Selvi (2010) -> involuntary narco/polygraph/brain mapping violates protection

EMERGENCY CORE

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Selvi (2010) -> involuntary narco/polygraph/brain mapping violates protection

EMERGENCY CORE

Article 359 order can never include Article 20 after the 44th Amendment.

STAGE 11

ARTICLE 21 EVOLUTION, DIGNITY AND DERIVED RIGHTS

CORE

A.K. Gopalan (1950) -> narrow procedure and silos
R.C. Cooper (1970) -> effects approach; silos weaken
Maneka Gandhi (1978) -> fair, just, reasonable
procedure + 14-19-21 interlock

NAMED DERIVED-RIGHT ANCHORS

Francis Coralie -> dignity
Hussainara Khatoon -> speedy trial
M.H. Hoskot -> legal aid
Olga Tellis -> livelihood + fair procedure, not no-

eviction immunity

D.K. Basu -> arrest safeguards/compensation
Parmanand Katara / Paschim Banga -> emergency medical
care
environmental cases -> clean air/water
Shafin Jahan -> adult marital choice

LIMIT: judicially enforceable floor, not an unlimited
welfare-policy code.

STAGE 12

PRIVACY, AUTONOMY, DNA AND DATA STATUS

CORE

PUTTASWAMY (2017), NINE JUDGES
bodily + decisional + informational privacy
legality -> legitimate aim -> proportionality -> procedural safeguards

AUTONOMY

Navtej (2018) -> consensual adult same-sex intimacy
Joseph Shine (2018) -> adultery offence invalidated

bodily + decisional + informational privacy
legality -> legitimate aim -> proportionality -> procedural safeguards

AUTONOMY

Navtej (2018) -> consensual adult same-sex intimacy
Joseph Shine (2018) -> adultery offence invalidated
Supriyo (2023) -> Court did not rewrite SMA to create same-sex marriage
review dismissed -> 9 January 2025

DNA / PATERNITY

bodily integrity + truth + child's dignity
Bhabani Prasad Jena -> eminent need / caution
BSA 2023 section 116 -> legitimacy presumption and non-access

DPDP: G.S.R. 843(E)/846(E), 13 NOV 2025 -> phased commencement;
whole regime not operative on 7 SEP 2026.

STAGE 13

ARTICLE 21A AND ARTICLE 22

CORE

ARTICLE 21A

Mohini Jain 1992 -> education/dignity
Unni Krishnan 1993 -> bounded entitlement
86th Amendment 2002 -> free/compulsory education,
ages 6-14
RTE Act 2009 -> implementation
25% obligation -> covered non-minority unaided
schools
Pramati 2014 -> Article 30 minority-institution
boundary
below six -> Article 45 | parent/guardian duty ->

51A(k)

ARTICLE 22

ordinary arrest -> grounds + lawyer + magistrate
within 24 hours
preventive detention -> separate clauses (4)-(7),
grounds/representation
operative no-Board ceiling -> three months
44th Amendment two-month substitution -> not
commenced.

STAGE 14

ARTICLES 23-24 EXPLOITATION

CORE

STAGE 14

ARTICLES 23-24 EXPLOITATION

CORE

ARTICLE 23

trafficking | begar (forced unpaid labour) | similar forced labour
available to persons; applies against State and private actors
PUDR (1982) -> economic compulsion / below legal minimum can be forced labour
Bandhua Mukti Morcha (1984) -> bonded labour + dignity + enforcement
23(2) compulsory public service allowed without religion/race/caste/class bias

ARTICLE 24

child below 14
no factory, mine or hazardous employment

STATUTORY LAYER

Bonded Labour System (Abolition) Act 1976
Child and Adolescent Labour Act 1986, amended 2016

TRAP: constitutional Article 24 and the broader statute are not identical.

STAGE 15

ARTICLES 25-28 AND PRINCIPLED-DISTANCE SECULARISM

CORE

ARTICLE 25 -> all persons; conscience; profess/practise/propagate
limits: public order, morality, health, other FRs
25(2): secular regulation + social reform
Rev Stainislaus (1977): propagate != force/fraud conversion

ARTICLE 26 -> denominations
institutions | religious affairs | property
public order, morality, health; autonomy != maladministration

ARTICLE 27 -> no specifically appropriated religion-promoting tax
general tax / regulatory fee require separate analysis

ARTICLE 28
wholly State-maintained -> no instruction
State-administered trust/endowment -> permitted
recognised/aided -> no compelled attendance without consent

MODEL: protection + equal engagement + secular regulation + reform.

wholly State-maintained -> no instruction
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STAGE 16

ERP AND ARTICLES 29-30

CORE

ESSENTIAL RELIGIOUS PRACTICES

Shirur Mutt (1954) -> religious/secular distinction;
doctrinal essentiality
Durgah Committee (1961) -> narrower filter
sequence: claimant -> religious/secular ->
essentiality -> explicit limits
-> competing rights/reform ->
proportionality
defence: protected religious core
criticism: judges as theologians; frozen textual
religion
Sabarimala: state 2018 majority only absent later
final verified authority

ARTICLE 29

(1) any section of citizens: language/script/culture
(2) no citizen denied covered admission only on
religion/race/caste/language
not minority-exclusive

ARTICLE 30

religious/linguistic minorities establish/administer
institutions
T.M.A. Pai (2002): generally State-wise minority unit
St Xavier's / P.A. Inamdar: autonomy with regulatory
excellence.

STAGE 17

ARTICLE 32, ARTICLE 226 AND FIVE WRITS

CORE

ARTICLE 32

itself a Fundamental Right
Supreme Court forum for Part III enforcement
original but not exclusive; Ambedkar's 'heart and soul'

ARTICLE 226

High Court -> Fundamental Rights + other legal rights + public duties
wider subject matter and non-State public-duty reach

WRIT BY DEFECT

ARTICLE 226
High Court -> Fundamental Rights + other legal rights + public duties
wider subject matter and non-State public-duty reach

WRIT BY DEFECT
habeas corpus -> unlawful detention, including private detention
mandamus -> compel public duty
prohibition -> stop threatened jurisdictional excess
certiorari -> quash completed defective order
quo warranto -> test legal authority to public office

PIL: relaxed standing/access device; full institutional doctrine belongs Topic 18.

STAGE 18

SAVINGS, PROPERTY, SPECIAL POWERS AND EMERGENCY DISTINCTION

CURRENT + EXAM

31A -> specified reform categories; defined Article
14/19 protection
31B -> Ninth Schedule
Waman Rao 1981 + I.R. Coelho 2007 -> post-24 APR
1973 review
31C -> genuine Article 39(b)/(c) laws; not every DPSP
Minerva Mills 1980 -> extension invalid
Property Owners Association 2024 -> original
clause survives;
not every private
asset
qualifies
300A -> every person; authority of law; constitutional

not Fundamental Right

33 -> Parliament tailors FRs for specified
forces/services
34 -> indemnity/validation where martial law existed
35 -> Parliament-only listed Part III legislation

358 -> automatic Article 19 effect only in
war/external-aggression Emergency
359 -> Presidential order; specified enforcement; never
Articles 20 or 21
MARTIAL LAW != NATIONAL EMERGENCY.

STAGE 19

CURRENT STATUS, PYQ RAIL AND ANSWER SPINE

CURRENT + EXAM

CURRENT STATUS CHECKED 7 SEPTEMBER 2026
Electoral Bonds (15 FEB 2024) -> funding information / Article 19(1)(a)
Davinder Singh (1 AUG 2024) -> evidence-based SC sub-classification allowed

Property Owners Association 2024 -> original clause survives;

not every private asset qualifies

300A -> every person; authority of law; constitutional

358 -> automatic Article 19 effect only in war/external-aggression Emergency
359 -> Presidential order; specified enforcement; never Articles 20 or 21
MARTIAL LAW != NATIONAL EMERGENCY.

STAGE 19

CURRENT STATUS, PYQ RAIL AND ANSWER SPINE

CURRENT + EXAM

CURRENT STATUS CHECKED 7 SEPTEMBER 2026

Electoral Bonds (15 FEB 2024) -> funding information / Article 19(1)(a)
Davinder Singh (1 AUG 2024) -> evidence-based SC sub-classification allowed
Property Owners Association (5 NOV 2024) -> original Article 31C survives
Supriyo review (9 JAN 2025) -> dismissed; no Navtej-to-marriage overstatement
BNS 152 -> notice 28 AUG 2025; no located final merits decision
DPDP -> phased commencement; later tranches still future
Harish Rana (11 MAR 2026) -> CANH withdrawal within passive-euthanasia safeguards;
active euthanasia not legalised

PYQS

Mains 6: 2019 secularism; 2021 equality; 2022 movement; 2023 life/gender;
2024 privacy-DNA
Objective 15: 2018-2026; only held final local-official key is 2024 Q76 = D

ANSWER SPINE

claim -> exact Article -> named case/statute -> mechanism -> counter-position
-> qualification/current status -> remedy -> graded conclusion.

Checked 7 September 2026 • 19-stage factual spine • Approval pending

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